

CONTRACT LAW FUNDAMENTALS

A contract is a legally binding agreement between two or more parties. For a contract to be valid, it must contain the following elements:

1. Offer - One party must make a clear offer to another party.
2. Acceptance - The other party must accept the offer as presented.
3. Consideration - Something of value must be exchanged between the parties.
4. Capacity - Both parties must have legal capacity to enter the contract.
5. Legality - The contract must be for a legal purpose.

Breach of contract occurs when one party fails to fulfill their obligations under the agreement. Remedies for breach include compensatory damages, specific performance, and rescission of the contract.

TORT LAW OVERVIEW

A tort is a civil wrong that causes harm to another person, for which the injured party may seek compensation. The three main categories of torts are:

1. Intentional Torts - Deliberate acts that cause harm, such as assault, battery, false imprisonment, and defamation.
2. Negligence - Failure to exercise reasonable care, resulting in harm to another person.
3. Strict Liability - Liability imposed without fault, often applied in product liability and abnormally dangerous activities.

To establish a negligence claim, the plaintiff must prove four elements: duty of care, breach of that duty, causation (both actual and proximate), and damages suffered as a result.

CRIMINAL LAW BASICS

Criminal law deals with conduct that is considered harmful to society as a whole. Unlike civil law, criminal cases are prosecuted by the government. Key concepts include:

1. Mens Rea - The guilty mind or criminal intent required for most crimes.
2. Actus Reus - The guilty act or criminal conduct that constitutes the offense.
3. Beyond Reasonable Doubt - The highest standard of proof, required for criminal convictions.
4. Due Process - Constitutional protections guaranteed to the accused under the Fifth and Fourteenth Amendments.

Crimes are generally classified as felonies (serious offenses punishable by imprisonment exceeding one year) or misdemeanors (less serious offenses with shorter sentences).